

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 07/28/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-03486
CASE NAME: JPMORGAN CHASE BANK, N.A. VS. STEPHANIE JIN
*HEARING ON MOTION IN RE: TO ENTER JUDGMENT PURSUANT TO STIPULATION
FILED BY: JPMORGAN CHASE BANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed, on 4/15/26, a Motion to enter judgment pursuant to stipulation. The Motion was apparently served on Defendant by mail.

The Motion is unopposed.

This is the third time Plaintiff has made the Motion. The two times prior, this court found that there was a lack of service. The first time, 1/27/26, this court found that Plaintiff had served the Kazerouni Law Group, with a mailing address in Nevada, and that there was no record of this attorney ever representing the Defendant. The second time, 4/7/26, this court found that Plaintiff had not made any subsequent effort to provide notice to the defendant.

Now, for the third time, Plaintiff has failed to provide proper notice. The proof of service, attached to the Motion filed on 4/15/26, indicates mail service on the Defendant at a

Richmond, California address. Yet it is unclear how Plaintiff arrived at this address. There are no filings in the docket to corroborate this. The proof of service of process indicated service on counsel, the Moore Law Group, out of Santa Ana, California.

It is unclear why Plaintiff neglected to serve the Moor Law Group.

Disposition

This Motion will be dropped.

2. 9:00 AM CASE NUMBER: L24-02267

CASE NAME: CITIBANK, N.A. VS. KARLA GOMEZ

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY:

TENTATIVE RULING:

Plaintiff filed a Motion, on 2/6/26, to set aside notice of settlement and enter judgment pursuant to stipulation. The Motion was originally scheduled for 5/5/26, but on that date, this court found that Plaintiff had not properly served Defendant with notice and continued the Motion to 7/28/26. The court also ordered Plaintiff to provide notice to the Defendant.

As of this writing, there is no evidence that Plaintiff has provided any notice to Defendant of the Motion or of the hearing.

Disposition

This Motion will be dropped.

3. 9:00 AM CASE NUMBER: L25-07986

CASE NAME: CAPITAL ONE, N.A. VS. TIFFANY HOLLISTER

***HEARING ON MOTION IN RE: MOTION TO SET ASIDE DISMISSAL AND ENTER JUDGMENT UNDER STIPULATION**

FILED BY:

***TENTATIVE RULING**

Plaintiff filed a Motion, on 1/22/26, to set aside dismissal and enter judgment under stipulation. The Motion hearing was scheduled for 4/28/26, and on that date, this court found that Plaintiff had not provided notice to Defendant. Specifically, though the service was purportedly done by mail, there was no evidence to corroborate that the mailing address (in Richmond) was in fact that of Defendant.

This court continued the Motion to 7/28/26 and ordered Plaintiff to provide notice to Defendant.

For the hearing on 7/28/26, Plaintiff filed a proof of service on 5/1/26. However, the proof indicates mail service at the same address in Richmond. And, once again, there is no evidence that this is in fact the address of Defendant.

The court wonders if Plaintiff read the tentative ruling from 4/28/26.

Disposition

This Motion will be dropped.

4. 9:00 AM CASE NUMBER: L25-12147

CASE NAME: CITIBANK N.A. VS. CESAR RIOS

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CITIBANK N.A.

TENTATIVE RULING:

Background

Plaintiff filed a Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,650.27, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$0.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,233.88.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-12428

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY:

TENTATIVE RULING:

Defendant filed a Demurrer to all causes of action in the Complaint filed on 12/19/25.

Plaintiff filed a timely Response and Declaration on 7/15/16. These documents were served on the Defendant.

Background

Defendant demurs to the Complaint, contending that Plaintiff's Complaint, in which the Plaintiff alleges a breach of contract stemming from a failure to pay attorney fees, is defective because the payment agreement contained a binding arbitration clause. Defendant argues that they never waived that clause.

Plaintiff, in the Complaint, suggests that it was Defendant's burden to trigger the arbitration process, and that Defendant failed to do so when they did not respond to written and verbal demands from Plaintiff.

The Complaint is silent about any attempts by the Plaintiff to initiate arbitration.

In the response to the Demurrer, Plaintiff argues that the arbitration provision of the agreement does not require arbitration before the filing of a lawsuit in the superior court.

The arbitration provision in the fee agreement, which is attached to the Complaint (Exhibit A, Clause 9), requires binding arbitration for fee disputes, and that the parties waive a de novo trial of the dispute. The agreement contains no language indicating whether any particular party is responsible for triggering the arbitration process. There is some language, toward the end of the provision, that appears to leave open the window for the filing of a civil suit by the Plaintiff, but this is limited to the jurisdiction of a small claims matter.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading. *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A demurrer "offers an appropriate procedural vehicle, in addition to a motion to compel arbitration, for pointing out to the court that the plaintiff has no right to sue because he or she has agreed to arbitrate." *Schatz v. Allen Matkins Leck Gamble & Mallory LLP* (2009) 45 Cal.4th 557, 572.

(Plaintiff, in their Response, cites *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972, for the apparent proposition that demurrers can be used for arbitration provisions in "limited circumstances," and that enforcement depends (of an arbitration provision) must be handled through a motion to compel arbitration. (P.3, Plaintiff's Response). But the court does not find anything related on the cited page of *Engalla*.)

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Written agreements requiring arbitration as the method of resolution are governed by the California Arbitration Act ("CAA"). (See CCP Sections 1280 et seq.) Such provisions are binding as would be any other provision of a valid contract. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 991.

The statutes of the CAA stand in difference to those of the Mandatory Fee Arbitration Act ("MFAA," Sections 6200-6206 of the Business and Professions Code) in that while

“[A]rbitration under the MFAA is nonbinding ... arbitration under the CAA is binding.” *Id.* What’s more, there is nothing about the MFAA that precludes an attorney and client from entering into binding contractual arbitration. *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4TH 557, 562.

An additional, and significant, difference between the two acts concerns the act of waiver. The MFAA requires an attorney to inform a client of the client’s rights to seek arbitration under the Act for disputes over fees. Yet, while a client’s failure to respond to the attorney’s notice constitutes waiver of this right under the MFAA, this conduct does not revoke any contract provision requiring arbitration unless the agreement permits such a waiver. (See *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4TH 557; and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 989 “If the client fails to invoke his or her rights under the MFAA ... the preexisting arbitration agreement is enforceable against the client.”)

In the instant matter, the agreement between the two parties clearly calls for binding arbitration in the case of a fee dispute outside the jurisdiction of a court of small claims. What’s more, the agreement says nothing about laying the burden on any particular party to trigger the arbitration process, and about whether any particular conduct constitutes a waiver of this provision. But the court will not read this silence to mean something more affirmative, such as requiring the party wishing to avail itself of arbitration to begin the process, and that a failure to do so waives their right to the remedy. If Plaintiff was dissatisfied with the Defendant’s performance of the bargain – i.e. not paying fees – it should have started arbitration.

Instead, it attempted to shift the burden to Defendant, and when Defendant did not act, attempted to circumvent the explicit provision of the agreement entirely.

The court will permit the Plaintiff to amend the Complaint. However, the court intends to stay the suit pending arbitration. Thus, the deadline by which to amend the Complaint will also be stayed.

If the lawsuit resumes, then court will then provide a new deadline by which Plaintiff must file an amended Complaint.

Disposition

Defendant’s Demurrer is sustained.

Plaintiff to begin the arbitration process.

The Case will be stayed pending arbitration.

A control date of 1/19/27, 8:30 am, will be scheduled to ascertain the posture of arbitration.

Defendant to file Order.

Court to notify parties of 1/19/27 date.

6. 9:00 AM CASE NUMBER: L25-12479

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY:

TENTATIVE RULING:

Defendant filed a Demurrer to all causes of action in the Complaint filed on 12/19/25.

Plaintiff filed a timely Response and Declaration on 7/15/16. These documents were served on the Defendant.

Background

Defendant demurs to the Complaint, contending that Plaintiff's Complaint, in which the Plaintiff alleges a breach of contract stemming from a failure to pay attorney fees, is defective because the payment agreement contained a binding arbitration clause. Defendant argues that they never waived that clause.

Plaintiff, in the Complaint, suggests that it was Defendant's burden to trigger the arbitration process, and that Defendant failed to do so when they did not respond to written and verbal demands from Plaintiff.

The Complaint is silent about any attempts by the Plaintiff to initiate arbitration.

In the response to the Demurrer, Plaintiff argues that the arbitration provision of the agreement does not require arbitration before the filing of a lawsuit in the superior court.

The arbitration provision in the fee agreement, which is attached to the Complaint (Exhibit A, Clause 9), requires binding arbitration for fee disputes, and that the parties waive a de novo trial of the dispute. The agreement contains no language indicating whether any particular party is responsible for triggering the arbitration process. There is some language, toward the end of the provision, that appears to leave open the window for the filing of a civil suit by the Plaintiff, but this is limited to the jurisdiction of a small claims matter.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A demurrer "offers an appropriate procedural vehicle, in addition to a motion to compel arbitration, for pointing out to the court that the plaintiff has no right to sue because he or she has agreed to arbitrate." *Schatz v. Allen Matkins Leck Gamble & Mallory LLP* (2009) 45 Cal.4th 557, 572.

(Plaintiff, in their Response, cites *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972, for the apparent proposition that demurrers can be used for arbitration provisions in "limited circumstances," and that enforcement depends (of an arbitration provision) must be handled through a motion to compel arbitration. (P.3, Plaintiff's Response). But the court does not find anything related on the cited page of *Engalla*.)

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Written agreements requiring arbitration as the method of resolution are governed by the California Arbitration Act ("CAA"). (See CCP Sections 1280 et seq.) Such provisions are binding as would be any other provision of a valid contract. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 991.

The statutes of the CAA stand in difference to those of the Mandatory Fee Arbitration Act (“MFAA,” Sections 6200-6206 of the Business and Professions Code) in that while “[A]rbitration under the MFAA is nonbinding ... arbitration under the CAA is binding.” *Id.* What’s more, there is nothing about the MFAA that precludes an attorney and client from entering into binding contractual arbitration. *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4TH 557, 562.

An additional, and significant, difference between the two acts concerns the act of waiver. The MFAA requires an attorney to inform a client of the client’s rights to seek arbitration under the Act for disputes over fees. Yet, while a client’s failure to respond to the attorney’s notice constitutes waiver of this right under the MFAA, this conduct does not revoke any contract provision requiring arbitration unless the agreement permits such a waiver. (See *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4TH 557; and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 989 “If the client fails to invoke his or her rights under the MFAA ... the preexisting arbitration agreement is enforceable against the client.”)

In the instant matter, the agreement between the two parties clearly calls for binding arbitration in the case of a fee dispute outside the jurisdiction of a court of small claims. What’s more, the agreement says nothing about laying the burden on any particular party to trigger the arbitration process, and about whether any particular conduct constitutes a waiver of this provision. But the court will not read this silence to mean something more affirmative, such as requiring the party wishing to avail itself of arbitration to begin the process, and that a failure to do so waives their right to the remedy. If Plaintiff was dissatisfied with the Defendant’s performance of the bargain – i.e. not paying fees – it should have started arbitration.

Instead, it attempted to shift the burden to Defendant, and when Defendant did not act, attempted to circumvent the explicit provision of the agreement entirely.

The court will permit the Plaintiff to amend the Complaint. However, the court intends to stay the suit pending arbitration. Thus, the deadline by which to amend the Complaint will also be stayed.

If the lawsuit resumes, then court will then provide a new deadline by which Plaintiff must file an amended Complaint.

Disposition

Defendant's Demurrer is sustained.

Plaintiff to begin the arbitration process.

The Case will be stayed pending arbitration.

A control date of 1/19/27, 8:30am, will be scheduled to ascertain the posture of arbitration.

Defendant to file Order.

Court to notify parties of 1/19/27, date.

7. 9:00 AM CASE NUMBER: L25-12481

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY:

TENTATIVE RULING:

Defendant filed a Demurrer to all causes of action in the Complaint filed on 12/19/25.

Plaintiff filed a timely Response and Declaration on 7/15/16. These documents were served on the Defendant.

Background

Defendant demurs to the Complaint, contending that Plaintiff's Complaint, in which the Plaintiff alleges a breach of contract stemming from a failure to pay attorney fees, is defective because the payment agreement contained a binding arbitration clause. Defendant argues that they never waived that clause.

Plaintiff, in the Complaint, suggests that it was Defendant's burden to trigger the arbitration process, and that Defendant failed to do so when they did not respond to written and verbal demands from Plaintiff.

The Complaint is silent about any attempts by the Plaintiff to initiate arbitration.

In the response to the Demurrer, Plaintiff argues that the arbitration provision of the agreement does not require arbitration before the filing of a lawsuit in the superior court.

The arbitration provision in the fee agreement, which is attached to the Complaint (Exhibit A, Clause 9), requires binding arbitration for fee disputes, and that the parties waive a de novo trial of the dispute. The agreement contains no language indicating whether any particular party is responsible for triggering the arbitration process. There is

some language, toward the end of the provision, that appears to leave open the window for the filing of a civil suit by the Plaintiff, but this is limited to the jurisdiction of a small claims matter.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

A demurrer “offers an appropriate procedural vehicle, in addition to a motion to compel arbitration, for pointing out to the court that the plaintiff has no right to sue because he or she has agreed to arbitrate.” *Schatz v. Allen Matkins Leck Gamble & Mallory LLP* (2009) 45 Cal.4th 557, 572.

(Plaintiff, in their Response, cites *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972, for the apparent proposition that demurrers can be used for arbitration provisions in “limited circumstances,” and that enforcement depends (of an arbitration provision) must be handled through a motion to compel arbitration. (P.3, Plaintiff's Response). But the court does not find anything related on the cited page of *Engalla*.)

When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Written agreements requiring arbitration as the method of resolution are governed by the

California Arbitration Act (“CAA”). (See CCP Sections 1280 et seq.) Such provisions are binding as would be any other provision of a valid contract. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 991.

The statutes of the CAA stand in difference to those of the Mandatory Fee Arbitration Act (“MFAA,” Sections 6200-6206 of the Business and Professions Code) in that while “[A]rbitration under the MFAA is nonbinding ... arbitration under the CAA is binding.” *Id.* What’s more, there is nothing about the MFAA that precludes an attorney and client from entering into binding contractual arbitration. *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4th 557, 562.

An additional, and significant, difference between the two acts concerns the act of waiver. The MFAA requires an attorney to inform a client of the client’s rights to seek arbitration under the Act for disputes over fees. Yet, while a client’s failure to respond to the attorney’s notice constitutes waiver of this right under the MFAA, this conduct does not revoke any contract provision requiring arbitration unless the agreement permits such a waiver. (See *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4th 557; and *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 989 “If the client fails to invoke his or her rights under the MFAA ... the preexisting arbitration agreement is enforceable against the client.”)

In the instant matter, the agreement between the two parties clearly calls for binding arbitration in the case of a fee dispute outside the jurisdiction of a court of small claims. What’s more, the agreement says nothing about laying the burden on any particular party to trigger the arbitration process, and about whether any particular conduct constitutes a waiver of this provision. But the court will not read this silence to mean something more affirmative, such as requiring the party wishing to avail itself of arbitration to begin the process, and that a failure to do so waives their right to the remedy. If Plaintiff was dissatisfied with the Defendant’s performance of the bargain – i.e. not paying fees – it should have started arbitration.

Instead, it attempted to shift the burden to Defendant, and when Defendant did not act, attempted to circumvent the explicit provision of the agreement entirely.

The court will permit the Plaintiff to amend the Complaint. However, the court intends to stay the suit pending arbitration. Thus, the deadline by which to amend the Complaint will also be stayed.

If the lawsuit resumes, then court will then provide a new deadline by which Plaintiff must file an amended Complaint.

Disposition

Defendant's Demurrer is sustained.

Plaintiff to begin the arbitration process.

The Case will be stayed pending arbitration.

A control date of 1/19/27, 8:30 am, will be scheduled to ascertain the posture of arbitration.

Defendant to file Order.

Court to notify parties of 1/19/27, date.

8. 9:00 AM CASE NUMBER: L25-12484

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

HEARING ON DEMURRER TO: OR IN THE ALTERNATIVE MTC MEDIATION AND ARBITRATION WITH MTS

FILED BY:

TENTATIVE RULING:

Defendant filed a Demurrer to all causes of action in the Complaint filed on 12/19/25.

Plaintiff filed a timely Response and Declaration on 7/15/16. These documents were served on the Defendant.

Background

Defendant demurs to the Complaint, contending that Plaintiff's Complaint, in which the Plaintiff alleges a breach of contract stemming from a failure to pay attorney fees, is defective because the payment agreement contained a binding arbitration clause. Defendant argues that they never waived that clause.

Plaintiff, in the Complaint, suggests that it was Defendant's burden to trigger the arbitration process, and that Defendant failed to do so when they did not respond to written and verbal demands from Plaintiff.

The Complaint is silent about any attempts by the Plaintiff to initiate arbitration.

In the response to the Demurrer, Plaintiff argues that the arbitration provision of the agreement does not require arbitration before the filing of a lawsuit in the superior court.

The arbitration provision in the fee agreement, which is attached to the Complaint (Exhibit A, Clause 9), requires binding arbitration for fee disputes, and that the parties waive a de novo trial of the dispute. The agreement contains no language indicating whether any particular party is responsible for triggering the arbitration process. There is some language, toward the end of the provision, that appears to leave open the window for the filing of a civil suit by the Plaintiff, but this is limited to the jurisdiction of a small claims matter.

Analysis

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Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.

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(Plaintiff, in their Response, cites *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972, for the apparent proposition that demurrers can be used for arbitration provisions in "limited circumstances," and that enforcement depends (of an arbitration provision) must be handled through a motion to compel arbitration. (P.3, Plaintiff's Response). But the court does not find anything related on the cited page of *Engalla*.)

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment. *Id.*

"Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227. However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such

leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

Written agreements requiring arbitration as the method of resolution are governed by the California Arbitration Act (“CAA”). (See CCP Sections 1280 et seq.) Such provisions are binding as would be any other provision of a valid contract. *Aguilar v. Lerner* (2004) 32 Cal.4th 974, 991.

The statutes of the CAA stand in difference to those of the Mandatory Fee Arbitration Act (“MFAA,” Sections 6200-6206 of the Business and Professions Code) in that while “[A]rbitration under the MFAA is nonbinding ... arbitration under the CAA is binding.” *Id.* What’s more, there is nothing about the MFAA that precludes an attorney and client from entering into binding contractual arbitration. *Schatz v. Allen Matkins Leck Gamble and Mallory LLP* (2009) 45 Cal.4th 557, 562.

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In the instant matter, the agreement between the two parties clearly calls for binding arbitration in the case of a fee dispute outside the jurisdiction of a court of small claims. What’s more, the agreement says nothing about laying the burden on any particular party to trigger the arbitration process, and about whether any particular conduct constitutes a waiver of this provision. But the court will not read this silence to mean something more affirmative, such as requiring the party wishing to avail itself of arbitration to begin the process, and that a failure to do so waives their right to the remedy. If Plaintiff was dissatisfied with the Defendant’s performance of the bargain – i.e. not paying fees – it should have started arbitration.

Instead, it attempted to shift the burden to Defendant, and when Defendant did not act, attempted to circumvent the explicit provision of the agreement entirely.

The court will permit the Plaintiff to amend the Complaint. However, the court intends to stay the suit pending arbitration. Thus, the deadline by which to amend the Complaint

will also be stayed.

If the lawsuit resumes, then court will then provide a new deadline by which Plaintiff must file an amended Complaint.

Disposition

Defendant's Demurrer is sustained.

Plaintiff to begin the arbitration process.

The Case will be stayed pending arbitration.

A control date of 1/19/27, 8:30am, will be scheduled to ascertain the posture of arbitration.

Defendant to file Order.

Court to notify parties of 1/19/27, date.

9. 9:00 AM CASE NUMBER: L25-14683

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

***HEARING ON MOTION IN RE: FOR MOTION FOR ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON DEFENDANT ANIL YADAV**

FILED BY: VAN DE POEL & LEVY LLP

TENTATIVE RULING:

This request should be submitted ex parte.

It will be dropped from this calendar.

10. 9:00 AM CASE NUMBER: L25-15018

CASE NAME: CAPITAL ONE N.A. VS. WAYNE GARNETT

***HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

FILED BY: CAPITAL ONE N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,571.68, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$142.

Costs are \$583.61.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,013,29.

Plaintiff to file order on Motion, as well as submit Judgment.

11. 9:00 AM CASE NUMBER: L26-00081

CASE NAME: CROWN ASSET MANAGEMENT LLC VS. DONPREYEL MARTIN

***HEARING ON MOTION IN RE: STAY OF PROCEEDINGS PENDING ARBITRATION**

FILED BY:

TENTATIVE RULING:

Defendant filed a Motion, on 2/24/26, to stay proceedings pending arbitration. The Motion was originally scheduled for hearing on 5/5/26, yet on that day, the court found that Defendant had not provided notice of the Motion or hearing to Plaintiff, and continued the Motion to 7/28/26.

As of this writing, there is still no evidence that Defendant has provided any notice to Plaintiff.

Disposition

This Motion will be dropped.

12. 9:00 AM CASE NUMBER: L26-01518
CASE NAME: BANK OF AMERICA, N.A. VS. AMY NILSON

*HEARING ON MOTION IN RE:

FILED BY: NILSON, AMY

TENTATIVE RULING:

Background

Defendant has filed a Motion to dismiss the Complaint. Plaintiff filed a Response.

Though the sole cause of action in the Complaint is for breach of contract, the matter is a collections case in which Plaintiff has alleged that Defendant owes Plaintiff money stemming from a credit card account. Specifically, Plaintiff alleges the parties agreed on an extension of credit; that Defendant agreed to repay the amount according to particular terms; and that Defendant failed to abide by those terms when she failed to make payments.

Defendant filed an Answer, providing a general denial to the allegations.

Defendant bases the Motion on evidence suggesting that the debt no longer exists. She contends that the debt was “charged off,” and attaches exhibits purporting to be copies of credit reports in support of this claim.

Plaintiff, in their Response, notes that the phrase, “charge off” has nothing to do with the existence of the credit debt at issue.

Analysis

The vehicle for dismissal that Defendant intends to use is unclear, but she writes, in her Motion, that is made “on the grounds that the Complaint fails to state a claim upon which relief can be granted.” (Motion, P.2, lines 4-5.) The only sensible way to construe Defendant’s Motion is that she is challenging the sufficiency of the allegations in the Complaint. Thus, this court will treat Defendant’s request as though she has filed the equivalent of a Demurrer.

The limited role of the demurrer, however, is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party’s pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.* For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962,

967.

A defendant may raise the issue of standing in a Demurrer when the complaint does not state facts sufficient to constitute a cause of action by the particular plaintiff. *CCP 430.10(b) and (e)*; *CCP 430.30(a)*; and *Mercury Interactive Corp. v. Klein* (2007) 158 CA4th 60, 103-104.

But in the instant matter, the Complaint quite clearly states facts that are sufficient to support the claim that Defendant breached the terms of a contract. And the court, for the purposes of a demurrer, assumes these allegations to be true. That Defendant believes that there does not exist any outstanding balance appears to be an evidentiary issue. Disputes over evidence, however, are not appropriate for a demurrer.

Disposition

Defendant's Demurrer is overruled.

Plaintiff to file Order, and to serve copies of filed Order on Defendant.

13. 9:00 AM CASE NUMBER: L26-01968
CASE NAME: NEDA VALIASHRAFI VS. HUDSON INSURANCE COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: ATOZ PLUMBING HEATING SERVICES, INC.

TENTATIVE RULING:

Defendants Azizi and A to Z Plumbing filed a Demurrer to the Complaint.

Plaintiff filed a Response, on 5/11/26, in which they simply provided notice of a motion to seek leave to file an amended complaint.

Background

The Complaint in the instant matter ("Complaint"), filed on 3/19/26, alleges one cause of action against Defendant Hudson Insurance for recovery on a contractor licensure bond. The cause stems from plumbing work done by Defendant Azizi for Plaintiff. Plaintiff alleges that Azizi ran a plumbing company, A to Z Plumbing (also a named defendant, "A to Z"), performed plumbing work for Plaintiff in a negligent and fraudulent manner, caused damage to Plaintiff's property, was insured by Hudson, and Plaintiff seeks redress in the form of the insurance bond.

The only reference to particular work that was done in a negligent manner is the allegation that Azizi represented that he could obtain a permit for the work after the work was completed. Plaintiff alleges that this was not the case, that the permit had to be

obtained beforehand, and the consequence was that Plaintiff had to deconstruct the completed plumbing work.

Defendants Azizi and A to Z make two arguments in their Demurrer. The first is the broad argument that the causes of action are, essentially, not sufficiently specific, under Sections 430.10, (e) and (f), of the CCP. Most importantly, these Defendants contend that the sole cause of action fails to reference either of these Defendants, and only alleges a claim against Defendant Hudson.

The second is that Plaintiff is already seeking relief from Defendants in a pending action involving the same facts and causes of action. The court is confused by this, however, because the other matter to which Hudson cites is, apparently, the instant matter. They provide the same docket number and attach a copy of the Complaint. So, the court won't entertain this argument.

There is no evidence that Defendants Azizi or A to Z made an attempt to meet and confer with Plaintiff about the issues presented in this Demurrer.

Plaintiff seems to concede the matter in their Response.

Analysis

The limited role of the demurrer is to test the legal sufficiency of the allegations in a complaint. *Lewis v. Safeway, Inc.* (2015) 235 Cal.App.4th 385, 388. It raises issues of law, not fact, regarding the form or content of the opposing party's pleading.

Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994. A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. *Id.*

A demurrer is appropriate when the pleading is uncertain, ambiguous or unintelligible. (CCP 430.10(f).)

For purposes of demurrer, all facts pleaded in a complaint are assumed to be true, but the court does not assume the truth of conclusions of law. *Aubry v. Tri-City Hospital Dist.* (1992) 2 Cal.4th 962, 967.

Section 430.41 of the CCP requires that, before filing a demurrer, the filing party meet and confer with the opposition. However, a failure to do so does not factor into the court's decision on the demurrer. (CCP 430.41(a)(4).)

When a demurrer is sustained, the court must determine if "there is a reasonable possibility that the defect can be cured by amendment." *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. The burden rests on the plaintiff to prove the possibility of amendment.

Id.

“Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

However, leave to amend should not be granted where, in all probability, amendment would be futile. *Vaillette v. Fireman's Fund Ins. Co.* (1993) 18 Cal.App.4th 680, 685. Also, a court does not have to grant leave to amend when the plaintiff has not requested such leave. *Thornton v. California Unemployment Ins. Appeals Bd.* (2012) 204 CA4th 1403, 1423.

In the instant matter, though there are allegations directed toward Azizi and A to Z, the sole cause of action is not directed at either of them. The theory under which Plaintiff seeks relief from these two defendants is wholly unclear. Is it negligence? Fraud? Both? And when did the alleged conduct occur? Was it the same year in which Plaintiff sought the general contractor services of defendants?

This uncertainty puts Defendants Azizi and A to Z at a disadvantage. Under which legal theory must they prepare a defense?

The Demurrer as to these two Defendants will be sustained.

The court will grant Plaintiff leave to amend.

Disposition

Defendants’ Demurrer to the sole count in the Complaint is sustained.

Plaintiff to file amended Complaint within 10 days of the written notification of this Order.

Defendant to file Order and serve copy of filed Order on Plaintiff.

14. 9:00 AM CASE NUMBER: MSL19-06700

CASE NAME: AUTOVEST VS. ATAM

***HEARING ON MOTION IN RE: NTC AND MTN TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

FILED BY: ATAM, IRENE

***TENTATIVE RULING**

Defendant has filed a Motion to set aside a default judgment, but has not provided notice to the Plaintiff.

Disposition

This Motion will be continued to 10/13/26.

Defendant shall provide notice of the Motion and of the hearing to Plaintiff.

15. 9:00 AM CASE NUMBER: N26-0893
CASE NAME: VLADIMIR KALACHEVSKIY VS. UNITED STATES POSTAL SERVICE
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: KALACHEVSKIY, VLADIMIR
***TENTATIVE RULING**

Plaintiff has filed a Petition to confirm an arbitration award. But there is no evidence that Plaintiff provided any notice to the Defendant/Respondent.

Disposition

This Petition will be continued to 10/13/26.

Petitioner to provide notice to Defendant/Respondent.